

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO
SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,
Respondents.

DOCKET NO. 19-02

Served: August 6, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

SCHEDULING ORDER

On February 6, 2019, an initial order issued in this proceeding required the parties to file a joint status report with proposed schedule within twenty days of the filing of the answer. On April 25, 2019, a notice of dismissal of Oceanic General Agency, Inc. was issued. On May 14, 2019, a notice of dismissal of Crowley Puerto Rico Services, Inc. was issued. On July 2, 2019, an order was issued denying a motion to dismiss filed by the Puerto Rico Port Authority ("PRPA"). On July 16, 2019, PRPA filed its answer. On July 31, 2019, the parties filed their joint status report with proposed schedule for discovery and dispositive motions.

Dispositive motions, such as motions for summary decision, are generally disfavored at the conclusion of a proceeding. However, due to the number of potentially dispositive legal issues in this proceeding, dispositive motions may be appropriate if new judicial decisions are issued which would impact resolution of this proceeding. If none has been issued, then the parties will begin final briefing pursuant to the schedule below.

The parties shall file joint status reports on September 24, 2019, and October 18, 2019, identifying any new decisions which would justify dispositive motions. These joint reports should indicate the status of discovery and progress made in this proceeding as well as any significant developments in any related proceedings. The joint status reports should be emailed to secretary@fmc.gov with copies to opposing counsel and judges@fmc.gov.

For the reasons stated above, it is hereby

ORDERED that the parties abide by the following schedule:

August 15, 2019 Written discovery requests exchanged.

September 16, 2019 Written discovery requests answered.

September 24, 2019 First joint status report due.

October 1-18, 2019	Depositions.
October 18, 2019	All discovery completed. Second joint status report due.
November 18, 2019	Complainant files brief, proposed findings of fact, and appendix.
December 18, 2019	Respondent files opposition brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact.
January 10, 2020	Complainant files reply brief and responses to Respondent's proposed findings of fact.

All requests for extensions will be reviewed for good cause, even if the parties agree on the requested extension. The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equip. Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 430-31 (5th Cir. 1998). Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding, and it is therefore in the best interests of all parties to proceed expeditiously.

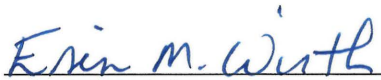
The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by a citation to a specific, unique page number in the appendix with the evidence that the party contends will support the proposed finding of fact.¹ The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.

¹ Parties must designate specific facts and provide the court with their location in the record. *Orr v. Bank of Am.*, 285 F.3d 764, 775 (9th Cir. 2002). "General references [to evidence] without page or line numbers are not sufficiently specific." *S. Cal. Gas Co. v. City of Santa Ana*, 336 F.3d 885, 889 (9th Cir. 2003).

3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [party's] proposed findings of fact with the hard copies of the response to [party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondents contend that a document included in Complainant's appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondents shall cite to Complainant's appendix rather than include a second copy of the same document in its own appendix.
5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge